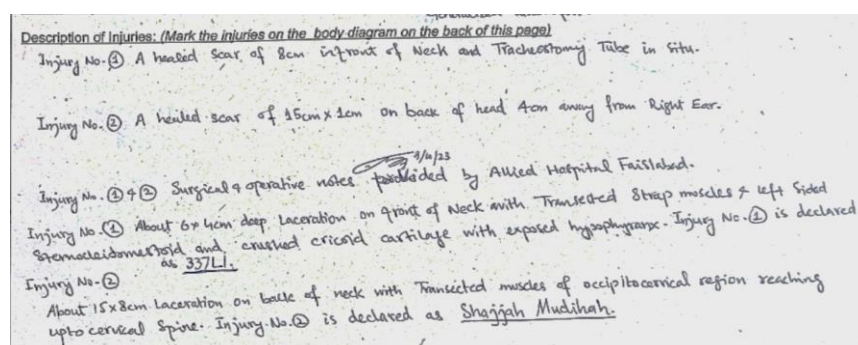


Muhammad Jehan Zeb Noon **vs** The State, etc.

2. Brief however necessary facts for decision of instant petition are that Muhammad Jehan Zeb Noon (present petitioner) got registered case vide F.I.R. No.733/2023 dated: 04.09.2023 under Sections: 324, 109, 34, 337-L(1), 337-A(ii) PPC (copy of the F.I.R. is available at page No.5 of this petition) regarding murderous attack upon Muhammad Anas (brother of the petitioner/injured in this case), copy of Medico-Legal Examination Certificate of Muhammad Anas (mentioned above) is available at page No.6-7 of this petition and relevant portion of the same is hereby scanned below:-



petitioner filed application for constituting District Standing Medical Board with respect to aforementioned Medico-Legal Examination Certificate of Muhammad Anas (copy of the application is available at page No.8 of this petition) which was dismissed vide order dated: 24.07.2024 passed by learned Magistrate Section-30, Pindi Bhattian (copy of the order is available at page No.9-10 of this petition) which has been impugned through this petition.

3. Learned counsel for the petitioner submits that crushed cricoid cartilage of Muhammad Anas has been noted in the Medico-Legal Examination Certificate issued by Medical Officer, THQ Hospital, Pindi Bhattian, however, exact evaluation of the same has still not been given which was necessary in this regard as Muhammad Anas (injured mentioned above) is still taking the breath on artificial source, however, said aspect has not been considered at the time of passing the impugned order, therefore, same is not sustainable; finally prays for setting aside the impugned order and issuance of order for constituting District Standing Medical Board for medical re-examination of Muhammad Anas (injured mentioned above) and declaration of his injuries in accordance with the settled principles of medical science/jurisprudence.

4. Learned counsel appearing on behalf of respondents No.6 and 7 while supporting the impugned order has opposed this petition.

5. Learned Assistant Advocate General Punjab under instructions of aforementioned Medical Officer of THQ Hospital, Pindi Bhattian and after himself going through the available record brought today about aforementioned Medico-Legal Examination Certificate of Muhammad Anas submits that since crushed cricoid cartilage of Muhammad Anas (injured of the case) was noted by the Medical Officer in the Medico-Legal Examination Certificate, therefore, final opinion regarding the same including opinion from ENT specialist was necessary but same has still not been given and it would be in the fitness of things if District Standing Medical Board is constituted for medical re-examination of Muhammad Anas and declaration of nature of injuries.

6. **Arguments heard and available record perused.**

7. It has been noticed that two injuries were noted by the Medical Officer in the Medico-Legal Examination Certificate of Muhammad Anas (injured of the case) and it was clearly mentioned regarding injury No.1 that there was crushed cricoid cartilage with exposed hypopharynx of Muhammad Anas (injured mentioned above), therefore, final evaluation of the same after obtaining opinion from Ear, Nose, Throat (ENT) Specialist (as apprised by learned Assistant Advocate General Punjab under instructions of Medical Officer) was necessary, however, same has not been done during his medical examination and such omission necessitates constitution of the Medical Board for doing the needful in this regard but said important aspect has not been taken into consideration at the time of passing the impugned order.

Therefore, impugned order dated: 24.07.2024 passed by learned Magistrate Section-30, Pindi Bhattian is hereby set aside, Medical Superintendent, District Headquarter Hospital, Hafizabad is directed to constitute District Standing Medical Board for medical re-examination of Muhammad Anas (injured mentioned above) with respect to his aforementioned Medico-Legal Examination Certificate No.293/2023 issued by Medical Officer, THQ Hospital, Pindi Bhattian within fifteen days and after medical re-examination of Muhammad Anas (injured mentioned above), issue report in this regard. Instant petition stands **accepted**.

(Farooq Haider)
Judge

Approved for reporting.

(Farooq Haider)
Judge

This order has been
dictated, pronounced,
prepared and signed
on 29.05.2025.

Iftikhar